THE MARINE ENVIRONMENT PROTECTION COMMITTEE, RECALLING Article 38(a) of the Convention on the International Maritime Organization concerning the functions of the Committee conferred upon it by internationa lconventions for the prevention and control of marine pollution, NOTING article 16 of the Internati onal Conven tion for the Prevention of Pollution from Ships, 1973 (hereinafter referred to as the "1973 Convention") and article VI of the Protocol of 1978 relating to the International Conventi on for the Prevention of Pollution from Ships, 1973 (he rei nafter referred to as the "1978 Protocol"), which together specify the amendment procedure of the 1978 Protocol and co nfer upon the appropriate body o fthe Organization the function of considering and adopting amendment s t othe - referred to as the "1978 Protocol"), which together specify the amendment procedure of the 1978 Protocol and co nfer upon the appropriate body o fthe Organization the function of considering and adopting amendment s t othe 1973 Convention, a9 modified by the 1978 Pr ot ocol (MARPOL 73/78), NOTING FURTHER resolution HEPC.55(3}) by which the Committee adopted amendments to th e International Code for the Construction and Equipment of Ships Carrying Dangerous Chemicals in Bulk (IBC Code). RECOGNIZING the need to bring the correspond ing amendments to the BCR Code into force on the date on which the amendments to the IBC Code enter into force, HAVING CONSIDERED, at its thirty-third session , the amendments to the BCR Code prop ose dby the Sub-Committee on Bulk Chemicals at its twenty-first session and circulated in accorda nce with article 16(2)(a) of the 197} Convention, 1. ADOPTS in accordance with article 16(2)(d) of the 1973 Convention amendments to the BeR Code, the text of which is set out in the annex to the present resolution; 2. DETERMINES, in accordance with article l6(2)(f)(iii) o fthe - 1. ADOPTS in accordance with article 16(2)(d) of the 1973 Convention amendments to the BeR Code, the text of which is set out in the annex to the present resolution; 2. DETERMINES, in accordance with article l6(2)(f)(iii) o fthe 1973 Convention, that the amendments shall be deemed to ha ve been acce pted on the date on which the conditions for the entry into force of the amendments to the IBC Code adopted by the Committee by resolution MEPC.5S(33) are met, unless, prior to that date, not less than one third of the Parties or the Parties, the combined merchant fleets of which constitute not le ss than fifty per cent of the gross tonnage of the world'smerchant fleet, have communicated to the Organization their objections to the amendments;
RESOLUTION MEPC.56(33) (adopted on 30 October 1992) ADOPTION OF AMENDMENTS TO THE CODE FOR THE CONSTRUCTION AND EQUIPMENT OF SHIPS CARRYING DANGEROUS CHEMICALS IN BULK (BCH CODE)- 2 - 3. INVITES t